

5. Notwithstanding anything in section one of the Manufactured Drawback on Tobacco Act, 1863, drawback on tobacco shall be allowed in respect of fractions of a pound in accordance with the provisions of section seventeen pound of the Customs Consolidation Act, 1876.

6. These provisions shall, for the purpose of subsection two of section six of the Finance Act, 1896, be treated as part of section one of the Manufactured Tobacco Act, 1863, and that subsection shall apply to stalks, shorts and other refuse of tobacco not of the fineness of snuff.

Application of
59 & 60 Vict.
c. 28. s. 6.
26 & 27 Vict.
c. 7.

CHAPTER 8.

An Act to amend the Savings Banks Acts.

[1st August 1904.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1. After the commencement of this Act an auditor of a Trustee Savings Bank shall be appointed for a term not exceeding one year, provided that a retiring auditor shall be eligible for reappointment.

Auditors of
Trustee Sav-
ings Banks.

2. It shall be lawful for the Trustees of a Trustee Savings Bank and for the Postmaster General to defray all or any of the expenses of any penny savings bank having a deposit account with the Trustees or the Postmaster General, as the case may be, incurred in obtaining necessary account books, stationery, or similar articles and in providing for the audit or inspection of the books and accounts of such penny savings bank, and the expenses so defrayed by the Trustees of a Trustee Savings Bank shall be deemed necessary expenses of a Trustee Savings Bank within the meaning of section two of the Trustee Savings Banks Act, 1863.

Expenses of
penny savin-
g banks.

26 & 27 Vict.
c. 87.

3.—(1) The Trustees of a Trustee Savings Bank may, with the consent of the Inspection Committee, grant to any officer of the Bank who becomes incapable of discharging the duties of his office by reason of old age, or permanent infirmity of body or mind, and who has completed not less than ten years service as an officer of the bank, compensation on his ceasing to hold office, by way either of a yearly allowance or of a gratuity of a capital amount, or by a combination of both these means.

Superannua-
tion of officers
of Trustee Sav-
ings Banks.

(2) A yearly allowance or gratuity under this Act shall not exceed such sum as might be granted by way of yearly allowance or gratuity respectively, under sections two and six of the Superannuation Act, 1859, to persons to whom a superannuation allowance may be granted under that Act, and a combined yearly allowance and gratuity shall, for the purposes of this provision, be treated as a yearly allowance consisting of the actual yearly

22 Vict. c. 26.

allowance increased by an amount which represents a yearly allowance equivalent to the gratuity.

(3) Any such compensation shall be paid, as part of the current expenses of the Bank, or, with the sanction of the Inspection Committee, out of any moneys standing to the credit of the separate surplus fund.

(4) Compensation payable by way of a yearly allowance shall only be continued so long as, in the opinion of the Inspection Committee, the surplus funds of the Bank admit of, or can provide for, such payment.

Power of Trust-
tee Savings
Banks to pur-
chase, sell, and
lease property.

4. Section ten of the Trustee Savings Banks Act, 1863, shall be read as if the following words were added thereto:—The Trustees shall have power, with the consent of the National Debt Commissioners, to purchase land or erect buildings for the purposes of their savings bank, and for those purposes to apply money standing to the separate surplus fund account of their bank, and with the like consent to sell, exchange, or lease any land or buildings acquired by them for the purposes of such Savings Bank, or any part thereof, and no purchaser, assignee or tenant shall be bound to inquire as to the authority for, or consent of the National Debt Commissioners to, any such sale, exchange, or lease, and the receipt of the Trustees for the time being shall be a discharge for all moneys accruing from or in connexion with such sale, exchange, or lease, which moneys shall be accounted for, and the balance, after deducting the amount of any necessary expenses incurred by the Trustees in connexion therewith, paid over to the said Commissioners, to be by them carried to the Separate Surplus Fund to the credit of the Trustees, and any conveyance, lease, deed, act, or thing executed, made, or done by such Trustees, for giving legal effect to any such sale, exchange, or lease, shall be valid and effectual to all intents and purposes. The term “land” shall include hereditaments and chattels real, and in Scotland heritable subjects of whatsoever description.

Amalgamation
of Trustees
Savings Banks.

5.—(1) Any two or more Trustee Savings Banks may, with the assent of the National Debt Commissioners, on the recommendation of the Inspection Committee, by special resolution of both or all such Banks, become amalgamated together as one Bank with or without any dissolution or division of the funds of such Banks, or either or any of them, and all the funds and property of such Banks shall become vested in the amalgamated Bank without the necessity of any form of conveyance or assignment other than the special resolution for amalgamation.

(2) For the purposes of such amalgamation a special resolution shall mean a resolution passed by not less than three-fourths of the Trustees of the Bank present at a general meeting, of which notice specifying the intention to propose the resolution has been duly given according to the rules, and confirmed by a majority of the Trustees present at a subsequent meeting, of which notice has been duly given, held not less than fourteen days nor more than one month from the date of the first-mentioned meeting.

6.—(1) Notwithstanding anything in paragraph (i) of section ten of the Savings Banks Act, 1891 (which limits the power of Trustee Savings Banks to make special investments), the Trustees of a Trustee Savings Bank may, on the recommendation of the Inspection Committee, and if authorised by the National Debt Commissioners, make special investments. Special investments. 54 & 55 Vict. c. 21.

Before giving their authority under this section, the National Debt Commissioners shall be satisfied that the Bank is open daily and has an aggregate cash liability to its depositors, irrespective of the amount of any special investments, of not less than two hundred thousand pounds, and the National Debt Commissioners may withdraw their authority if at any time in their opinion either of these conditions is not for the time being complied with.

(2) Money received for special investments may, notwithstanding anything in section ten of the Savings Banks Act, 1891, be invested in any securities issued under the Local Loans Act, 1875, and in loans secured on the security of any local rate levied, under the authority of any Act of Parliament, by any local authority authorised to borrow money on that security. 38 & 39 Vict. c. 83.

(3) The rules of every Trustee Savings Bank making special investments shall, as respects those investments, provide that the Trustees shall have power to demand at least one month's notice in advance of any repayment of whatever amount required by a depositor.

(4) The Trustees of a Trustee Savings Bank making special investments shall cause to be printed, in the pass-books in use for the purpose of special investments, a notice stating that the security of any special investment is not in any way guaranteed by the Government.

7. The rules for the management of a savings bank may provide for the execution and signing of instruments and documents on behalf of the Trustees by not less than four Trustees, authorised for the purpose by the Trustees, and any such rules, if duly certified, shall be binding on all persons and be operative for all purposes, but shall not affect anything contained in any regulations made by the National Debt Commissioners under section sixteen of the Revenue Act, 1903. Rules for authentication of documents. 3 Edw. 7. c. 46.

8. Section three of the Savings Bank Act, 1893 (which provides for the investment, unless the depositor otherwise directs, of any interest or dividend credited to him and of any sums transferred to him in excess of the limit of his deposit), shall cease to have effect. Deposit accounts in excess of 200l. 36 & 57 Vict. c. 69.

9.—(1) The National Debt Commissioners in conjunction with the Postmaster General shall, at the close of each year ending on the thirty-first day of December, prepare a statement showing the aggregate amount of the liabilities of the Government to depositors in Post Office Savings Banks at that date and the nature and amount of, the securities held by the Commissioners to meet those liabilities, and the National Debt Commissioners shall, at the close of each year ending on the twentieth day of

November, prepare a statement showing the aggregate amount of the liabilities of the Government to Trustee Savings Banks and to Friendly Societies respectively and the nature and amount of the securities held by the Commissioners to meet those liabilities; and the statements so prepared shall be laid before Parliament not later than the last day of June in each year.

(2) The obligation of the National Debt Commissioners and the Postmaster General to prepare a balance sheet under section six of the Savings Bank Investment Act, 1863, and section nine of the Post Office Savings Bank Act, 1861, shall cease, but nothing in this section shall affect any liability of the Consolidated Fund in respect of the said liabilities, and section six of the Post Office Savings Bank Act, 1861, shall apply with respect to the liabilities of the fund for the Banks for savings, as it applies with respect to the liabilities of the Post Office Savings Bank Fund.

26 & 27 Vict.
c. 25.

24 & 25 Vict.
c. 14.

Interest on the investments of the deficiency annuity under 43 & 44 Vict. c. 36 to be treated as income.
40 & 41 Vict. c. 13.

10.—(1) As from the twenty-first day of November nineteen hundred and three, all interest arising after that date from any securities in which the money received or to be received on account of the Trustee Savings Banks (Deficiency) Annuity is invested, or in which any money arising from the investment of the annuity is invested, shall, for the purpose of the annual account made out by the National Debt Commissioners under the Customs, Inland Revenue and Savings Banks Act, 1877, be treated as income arising from the securities in which sums received by the National Debt Commissioners from Trustees of Trustee Savings Banks are invested.

43 & 44 Vict.
c. 36.

(2) In this section the expression "Trustee Savings Banks (Deficiency) Annuity" means the annuity directed by the Savings Banks Act, 1880, to be inscribed in the books of the Bank of England for the National Debt Commissioners on account of Trustee Savings Banks for the purpose of paying off the deficiency mentioned in that Act.

(3) The amount payable in respect of the said annuity shall continue to be paid in each year up to the end of the half-year ending on the twentieth day of May nineteen hundred and seventeen and shall continue to be charged accordingly.

Discontinu-
ance of ac-
knowledg-
ments of de-
posits under
one pound.
24 & 25 Vict.
c. 14.

11. The entry in a depositor's book under section two of the Post Office Savings Bank Act, 1861, of a deposit of less than one pound shall be conclusive evidence of title, in the same manner as an acknowledgment of a deposit by the Postmaster General is evidence of title under that section, and it shall not be necessary to transmit any such acknowledgment in the case of such a deposit.

Transfer of sav-
ings banks de-
posits from or
to colonial or
foreign savings
banks.

12.—(1) The Postmaster General may enter into an arrangement with any government savings bank authority in any British possession or foreign country for the transfer of sums standing to the credit of depositors from such a government savings bank to the Post Office Savings Bank, or from the Post Office Savings Bank to such a government savings bank.

(2) Wherever such an arrangement has been made, the Postmaster General may place any amount transferred in pursuance

thereof to the Post Office Savings Bank to the credit of a depositor's account in that bank, although the amount transferred may exceed the amount which a depositor may deposit in any one savings bank year, but no amount shall be so credited which shall make the total amount standing to the credit of the account exceed the maximum for the time being allowed by law.

(3) Regulations made by the Postmaster General, with the consent of the Treasury, under the Post Office Savings Bank Acts, 1861 to 1893, may provide for any matters necessary to give effect to transfers authorised in pursuance of this section.

13. In this Act—

Interpretation.

The expression "Trustee Savings Bank" means a bank certified under the Trustee Savings Banks Act, 1863 ;

26 & 27 Vict.
c. 87.

The expression "penny savings bank" means a bank the rules of which fix a sum not exceeding five pounds as the maximum amount which may stand to the credit of any one depositor therein at any one time, and which provide, upon the attainment of such maximum amount, for the transfer of the same to an account opened in the depositor's own name in the Savings Bank where the deposit account of such penny savings bank is kept ;

The expression "Inspection Committee" means the Inspection Committee of Trustee Savings Banks established under section two of the Savings Banks Act, 1891 ;

The expression "separate surplus fund" means the fund created pursuant to section twenty-nine of the Trustee Savings Banks Act, 1863 ;

The expression "special investments" means investments made in pursuance of section sixteen of the Trustee Savings Banks Act, 1863.

14. This Act shall extend to the Channel Islands and the Isle of Man, and the Royal Courts of the Channel Islands shall register the same.

Extension to
Channel
Islands and
Isle of Man.

15. The enactments mentioned in the schedule to this Act are hereby repealed to the extent specified in the third column of that schedule.

Repeal.

16.—(1) This Act may be cited as the Savings Banks Act, 1904.

Short title.

(2) This Act, so far as it relates to the Post Office Savings Bank, may be cited with the Post Office Savings Bank Acts, 1861 to 1893, and, so far as it relates to Trustee Savings Banks, may be cited with the Trustee Savings Banks Acts, 1863 to 1893, and the last-mentioned Acts shall include, and shall be deemed to have included, so much of the Post Office Savings Bank Act, 1863, and of the Savings Banks Act, 1880, as relates to Trustee Savings Banks.

26 & 27 Vict.
c. 14.
43 & 44 Vict.
c. 36.

SCHEDULE.

Section 15.

ENACTMENTS REPEALED.

Session and Chapter.	- Short Title.	Extent of Repeal.
24 Vict. c. 14.	The Post Office Savings Bank Act, 1861.	Section nine, from "and a balance sheet" to the end of the section.
26 & 27 Vict. c. 25.	The Savings Bank Investment Act, 1863.	Sections six and seven.
26 & 27 Vict. c. 87.	The Trustee Savings Banks Act, 1863.	Section sixty, from "and thirdly" to "from the funds of friendly societies."
37 & 38 Vict. c. 73.	The Post Office Savings Banks Act, 1874.	Section three, from "and the balance sheet" to the end of the section.
43 & 44 Vict. c. 36.	The Savings Banks Act, 1880.	Section one, from "in every balance sheet" to "valued at, par."
44 & 45 Vict. c. 55.	The National Debt Act, 1881.	Section five, as from the twenty-first day of November nineteen hundred and three.
54 & 55 Vict. c. 21.	The Savings Banks Act, 1891.	Section fourteen.
56 & 57 Vict. c. 69.	The Savings Bank Act, 1893.	Section three.

CHAPTER 9.

An Act to provide for the Registration of Clubs in Ireland, and for other purposes connected therewith.

[15th August 1904.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

Register of clubs to be kept.

1.—(1) From and after the commencement of this Act a register shall be kept by every petty sessions clerk, (hereinafter called "the registrar"), in which he shall enter the name of each club situate within his district to which a certificate of registration is granted under the provisions of this Act, which register shall be in a form prescribed by the Lord Lieutenant, and shall show the date of such certificate, whether such certificate is granted for the first